2006 Warrant with Explanations cont'd

mously by the Board of Selectmen) (Not recommended unanimously by the Budget Advisory Committee)

YES NO

This article attempts to make the position of Code Enforcement Officer an elected position, rather than an appointed one. The Local Government Center staff attorney has advised the Town that, if approved, the article "could not be implemented by the Board of Selectmen". Town Counsel concurs, noting that it is "invalid and unenforceable".

Article 25.
Shall the town elect a Town Administrator to replace the present appointed Town Administrator; with said Town Administrator to be elected annually by ballot; and shall the elected Town Administrator receive the same pay and benefits as the present appointed Town Administrator, with periodic adjustments to be made by the Selectmen comparable to such adjustments provided to other town employees; and shall the elected Town Administrator have the same authorities, duties, and responsibilities as were set in place for the appointed Town Administrator on or before 12/31/2005, with the elected Town Administrator being allowed to accept additional authorities, duties, and responsibilities as they see fit; and shall the Town Moderator appoint an Interim Town Administrator to serve until the Town election in 2007? (By Petition) (Not recommended unanimously by the Board of Selectmen) (Not recommended unanimously by the Budget Advisory Committee)

YES NO

This article attempts to make the position of Town Administrator an elected position, rather than an appointed one. The Local Government Center staff attorney has advised the Town that, if approved, the article "could not be implemented by the Board of Selectmen". Town Counsel concurs, noting that it is "invalid and unenforceable".

Article 26.
Shall the Town vote to designate Fitzgerald Road, from Cathedral Road to Drag Hill Road, as a scenic road pursuant to RSA 231:157 and 231:158? (By Petition) (Recommended unanimously by the Board of Selectmen) (Recommended by the Budget Advisory Committee, 6 in favor, 1 against)

YES NO

This article, if approved, would prohibit tree cutting and the removal or alteration of stonewalls by the Town or a public utility, without prior Planning Board approval (except in the case of an emergency). The article does not limit the rights of any landowner abutting the road.

Article 27.
Shall the town vote to increase the exemption amounts for the elderly, which shall be subtracted each year from the assessment on the elderly person's residential property prior to calculating the tax, from $50,000 to $100,000 for persons ages 65-74, from $70,000 to $140,000 for persons ages 75-79, and from $100,000 to $200,000 for persons ages 80 and over; further, to increase the income limits from $18,940 to $25,000 for single persons and from $27,072 to $35,000 for married couples; and further, to increase the asset limit from $50,000 to $150,000? (Recommended unanimously by the Board of Selectmen) (Recommended by the Budget Advisory Committee, 6 in favor, 1 against)